

111	Cruz vs. Level 23 Fab Inc. 2022-01295952	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$50,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The court will not approve a settlement that permits defendant to shorten the PAGA Period and that option should be removed. ¶ 8. Plaintiff must determine the final number of applicable pay periods prior to approval, i.e., whether the escalator provision has been triggered. Id. 2. The parties should provide the estimated high and low individual PAGA payments. 3. The parties should provide plaintiff's estimated individual PAGA payment. 4. The parties should submit a copy of plaintiff's individual settlement agreement. 5. The "Released Parties" provision is overbroad. ¶ 1.27. It includes unrelated, ambiguous and/or unidentified third parties that should be identified or removed including "members, agents, trustees, representatives, attorneys, insurers, co-employers, reinsurers, parent companies, predecessors, successors, assigns, subsidiaries, divisions, and affiliates." 6. Defendant should state in a declaration filed with the court whether it is aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declaration shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 7. Plaintiff's counsel seeks reimbursement for litigation costs in the amount of \$7,137.46, including \$5,175 for mediation fees. ROA 75 ¶ 28. Counsel should submit an invoice supporting the claimed mediation fee. Additionally, to the extent the mediation included plaintiff's individual claims and settlement, as indicated by counsel (ROA 75 ¶ 8), why should aggrieved employees and the state, as opposed to plaintiff individually, bear that full cost? Costs for postage (\$31.38, \$2.07) should be removed as the court does not reimburse such costs. 8. Plaintiff's counsel seeks attorneys' fees totaling 40% of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fees award that exceeds 30% of the gross settlement amount. Plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice:</u> 9. The notice (ROA 75 Ex. 2A) should be revised consistent with the above. 10. Include the gross settlement amount, the amounts of attorneys' fees and attorneys' costs, the settlement administration fees, the net settlement amount and the amounts to be paid to the LWDA and the
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		Aggrieved Employees. 11. The same issue above applies to the term "Released Parties." <u>As to the proposed order:</u> 12. The proposed order (ROA 73) should be revised consistent with the above. 13. The document title (and footer) should be styled as a proposed order granting PAGA settlement approval and judgment. 14. Counsel's information should be removed from the caption page. 15. The settlement agreement and notice letter (in all languages) should be attached as exhibits to the proposed order and judgment. ¶¶ 1, 5. 16. Add "and the Administrator" between "Parties" and "shall." ¶ 1. 17. Include the release and when it is effective. 18. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 2:00 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 16 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to August 20, 2026 at 2:00 p.m. in Department CX102 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). The court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
112	Interface Rehab, Inc. vs. 4545 Shelley Court Opco, LLC 2025-01501797	1. Application for Right to Attach Order/Writ of Attachment 2. Application for Right to Attach Order/Writ of Attachment 3. Application for Right to Attach Order/Writ of Attachment 4. Application for Right to Attach Order/Writ of Attachment 5. Application for Right to Attach Order/Writ of Attachment 6. Application for Right to Attach Order/Writ of Attachment